

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 10, 2026 TIME: 8:30 A.M.

Therefore, the matters specified in requests for admission, set one, attached to the Declaration of Mr. Langedyk as Exhibit 1, are deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) This will be the order of the Court unless defendant serves, before the hearing on the motion, a proposed response to the requests for admissions that is in substantial compliance with Code of Civil Procedure section 2033.220. Plaintiff did not request sanctions.

No. 25CV02283

CHASE BANK, N.A. v. FARLEY

**PLAINTIFF'S MOTION FOR ORDER THAT MATTERS IN REQUESTS FOR
ADMISSIONS OF TRUTH OF FACTS BE DEEMED ADMITTED**

The motion is granted.

This is a limited jurisdiction collections case. The complaint alleges breach of contract and seeks \$15,567.14 in damages against defendant, who filed an answer on August 21, 2025.

On October 30, 2025, plaintiff served requests for admission set one, on defendant, attached to the declaration of Brian Langedyk as Exhibit 1. Plaintiff states defendant has failed to respond to the requests. (Decl. of Cox at ¶ 3.) The requests were served on defendant at 5888 Fern Flat Rd., Aptos, CA, which is the same address defendant used when filing her answer.

Defendant filed a late opposition on June 30, 2026, arguing that she does not have an obligation or legal duty to respond to the requests because plaintiff has not provided a valid contract. Defendant does not provide a reason for her failure to respond to the requests.

“If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2033.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

Therefore, the matters specified in requests for admission, set one, attached to the Declaration of Mr. Langedyk as Exhibit 1, are deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) This will be the order of the Court unless defendant serves, before the hearing on the motion, a proposed response to the requests for admissions that is in substantial compliance with Code of Civil Procedure section 2033.220. Plaintiff did not request sanctions.